

Court No. - 36

Case :- WRIT - C No. - 30393 of 2011

Petitioner :- Sita Ram

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Kamal Mishra

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Rajesh Chandra, J.

It is submitted by Shri Kamal Mishra, learned counsel for the petitioner that a Recovery Certificate for recovering an amount of Rs. 2,30,979/- plus other charges has been sent by the Respondent No.3 to the Collector, Mathura on the ground that theft of electricity was allegedly committed by the petitioner and the said amount is to be recovered from the petitioner on account of such theft of electricity. It is submitted that no notice or opportunity of being heard was given to the petitioner, and the requirements of the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 have not been followed.

Matter requires consideration.

Issue notice pending admission.

Notice on behalf of the Respondent No.1 & 4 has been accepted by the learned Standing Counsel. Notice on behalf of the Respondent Nos. 2 and 3 has been accepted by Shri Rajesh Tripathi.

Counter Affidavit on behalf of the respondent Nos.1 to 4 may be filed by 4.7.2011. Rejoinder Affidavit may be filed by the next date fixed in the matter.

List this case before the appropriate Bench on 17.8.2011.

Heard on the question of grant of interim relief.

Having regard to the facts and circumstances of the case and having considered the submissions made by the learned counsel for the parties, it is provided that till the next date fixed in the matter, recovery proceedings against the petitioner pursuant to the Recovery Certificate dated 16.6.2010 (Annexure 1 to the Writ Petition) will remain stayed, provided, within 4 weeks from today the petitioner deposits an amount of Rs. 1,15,000/- with the Respondent no.3.

The deposit so made will be without prejudice to the rights and contention

of the parties involved in the present case.

In the event of default on the part of the petitioner in making the deposit as directed, this interim order will stand automatically vacated.

Order Date :- 24.5.2011

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Court No. - 37

Case :- WRIT - C No. - 30393 of 2011

Petitioner :- Sita Ram

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Kamal Mishra

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble R.K. Agrawal,J.

Hon'ble Vinod Prasad,J.

The case was called out in the revised list. Nobody appeared to press this petition on behalf of the petitioner. The writ petition is dismissed for want of prosecution.

Order Date :- 17.8.2011

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Court No. - 32

Case :- WRIT - C No. - 30393 of 2011

Petitioner :- Sita Ram

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Kamal Mishra

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble R.K. Agrawal,J.

Hon'ble B. Amit Sthalekar,J.

Heard the learned counsel for the parties.

Cause shown is sufficient. The order dated 17.8.2011 dismissing the writ petition for want of prosecution is recalled and the writ petition is restored to its original number. The interim order is also restored.

List in the next cause list before the appropriate Bench. It shall not be treated as tied up or part heard before this Bench.

Order Date :- 23.2.2012

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Hon'ble R.K. Agrawal,J.

Hon'ble B. Amit Sthalekar,J.

Restored.

For order see our order of date passed on restoration application.

Order Date :- 23.2.2012

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Court No. - 38

Case :- WRIT - C No. - 30393 of 2011

Petitioner :- Sita Ram

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- Kamal Mishra

Counsel for Respondent :- C.S.C.,Rajesh Tripathi

Hon'ble Ran Vijai Singh,J.

Hon'ble Vinod Kumar Srivastava-III,J.

List this case in the next cause list showing the name of Sri Baleshwar Chaturvedi as counsel for the respondents.

Learned counsel for the petitioner undertakes to inform this order in writing to Sri Chaturvedi.

Order Date :- 10.3.2017

Pratima

Court No. - 29

Case :- WRIT - C No. - 30393 of 2011

Petitioner :- Sita Ram

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- Kamal Mishra

Counsel for Respondent :- C.S.C.,Baleshwar
Chaturvedi,Rajesh Tripathi

Hon'ble Tarun Agarwala,J.

Hon'ble Ashok Kumar,J.

List has been revised. No one appears on behalf of the petitioner to press this petition.

Sri Baleshwar Chaturvedi, the learned counsel for the respondents is present.

The writ petition is dismissed for want of prosecution.

Order Date :- 28.8.2017

YK

(Ashok Kumar, J.) (Tarun Agarwala, J.)